

26VECV03812 26VECV03812

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-28

Motion: PLAINTIFF'S MOTION FOR PRELIMINARY INJUNCTION

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Case Number: 26VECV03812 Hearing Date: July 28, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

NIKOLE CROWE, an individual,

Plaintiff,

vs.

ESSEX MANAGEMENT CORPORATION, a California corporation; ESSEX PROEPRTY TRUST, INC., a corporation; and DOES 1-50 inclusive,

Defendants.

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CASE NO: 26VECV03812

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION FOR PRELIMINARY INJUNCTION

Dept. U

July 28, 2026

BACKGROUND

This case is a landlord/tenant dispute filed by Tenant-Plaintiff Nikole Crowe against Landlord-Defendants Essex Management Corporation and Essex Property Trust, Inc. Plaintiff is self-represented.¹

Plaintiff alleges that after a fire/water incident in early June of 2026, Defendants told Plaintiff she would need to leave for about five (5) days for repairs. Plaintiff alleges she packed light and left with her 10-year-old daughter, leaving behind most of her belongings, business equipment, and legal/custody documents. Plaintiff alleges that after she left, her unit was gutted, and Plaintiff was told it wasn't safe to re-enter. Plaintiff alleges the 5-day date kept being extended indefinitely. Plaintiff alleges her hotel stay ran out and wasn't extended by Defendants. Plaintiff alleges she wasn't allowed back to get her things. Plaintiff seeks money damages and injunctive relief.

On June 30, 2026, Plaintiff filed her complaint against Defendants, alleging tenant harassment, wrongful eviction, breach of lease, and habitability and other claims.

On July 1, 2026, Plaintiff filed her ex parte application for a temporary restraining order ("TRO").

On July 6, 2026, Defendants filed their opposition brief as to the TRO application.

Also on July 6, 2026, Plaintiff filed her reply brief as to the TRO application.

On July 7, 2026, Judge Karen Moskowitz granted in part and denied in part the TRO application. Judge Moskowitz ordered as follows: "While the TRO remains in force, Defendants are to continue to provide Plaintiff and her minor child with emergency housing at the Residence Inn, Chatsworth, or similar emergency accommodations if the Residence Inn is not available, and to provide Plaintiff safe access to her residence ... to retrieve personal papers and belongings." (Minute Order dated July 7, 2026, p. 1.) Judge Moskowitz ordered Plaintiff to pay a \$500.00 undertaking and set an OSC re: preliminary injunction for July 28, 2026.

On July 10, 2026, Judge Moskowitz granted Defendants' peremptory challenge, and the case was transferred to this Department.

On July 15, 2026, Defendants filed their supplemental opposition brief as to the OSC re: preliminary injunction.

On July 22, 2026, Plaintiff filed her reply brief.

RULING

The motion for preliminary injunction is granted in the form of an order continuing Judge Moskowitz's order that Defendants continue to provide Plaintiff and her minor child with emergency housing at the Residence Inn, Chatsworth, or similar emergency accommodations if the Residence Inn is not available. If Plaintiff has not already been allowed access to her unit to retrieve sensitive documents, Defendants are ordered to facilitate such access within the next 3 days.

LEGAL STANDARD

The purpose of a preliminary injunction is to preserve the status quo and prevent irreparable harm pending a trial on the merits. *White v. Davis* (2003) 30 Cal.4th 528, 554. To obtain a preliminary injunction, a moving party must show: (1) she would likely suffer an irreparable injury for which damages would be an inadequate remedy if the injunction were denied; and (2) there exists a reasonable probability that she will prevail on the merits of her claims. *Huong Que, Inc. v. Luu* (2007) 150 Cal.App.4th 400, 408.

DISCUSSION

Plaintiff seeks a preliminary injunction continuing Judge Moskowitz's order that Defendants "continue to provide Plaintiff and her minor child with emergency housing at the Residence Inn, Chatsworth, or similar emergency accommodations if the Residence Inn is not available." (Minute Order dated July 7, 2026, p. 1.)

Defendants oppose the motion on grounds that the type of relief that Plaintiff is seeking is not provided for under applicable law. Defendants cite the fact that the property at issue is not covered by the Los Angeles Rent Stabilization Ordinance ("LARSO") and Tenant Habitability Program ("THP"), thus temporary relocation requirements under LARSO and THP do not apply.

In support of her position that there is a basis for injunctive relief, Plaintiff cites the Los Angeles Tenant Anti-Harassment Ordinance ("TAHO") under Los Angeles Municipal Code ("LAMC") section 45.31, et. seq. The TAHO states, "Any landlord violation of the provisions of this article, and any person who aids, facilitates, and/or incites another to violate the provisions of this article may be enjoined therefrom by a court of competent jurisdiction. A court may issue other equitable relief as appropriate if legal requirements of equitable relief are met." LAMC, § 45.35 (D). Such violations include, among other things, "[f]ailing to perform and timely complete necessary repairs and maintenance." LAMC, § 45.33 (2). Given these provisions of TAHO, the Court disagrees with Defendants that the type of relief Plaintiff is seeking by way of her motion for preliminary injunction is not authorized by law.

Defendants argue Plaintiff's evidence is insufficient to show that she is likely to prevail on her claims. Defendants' argument is unpersuasive; while the Court agrees that Plaintiff is not likely to prevail on all of her claims, it is likely that she will prevail on at least one of her claims. For example, Plaintiff alleges constructive eviction. The necessary elements for constructive eviction are: (1) a landlord's acts/omissions or disturbance/interference with her tenants' possession of leased premises; and (2) that said landlord's conduct caused either a substantial portion of the premises to be unfit for the purposes for which it was leased or the tenants to be deprived of the beneficial enjoyment or use of the premises for a substantial time. *Groh v. Kover's Bull Pen, Inc.* (1963) 221 Cal.App.2d 611, 614. Plaintiff presents evidence that Defendants have undertaken protracted construction work at Plaintiff's property, which has resulted in Plaintiff's loss of access to her housing. (See Suppl. Crowe decl., ¶¶ 3-4.) Defendants present evidence in support of their position that Plaintiff started a fire in her unit on June 7, 2026, which was the origin of Defendants needing to perform renovations at the property. (See Suppl. Bellwood decl., ¶¶ 5-9.) Defendants argue that because Plaintiff is at fault for the fire, Defendants' acts cannot be said to have interfered with Plaintiff's use and enjoyment of the property. While Defendants say they were informed by the fire department that Plaintiff started the fire, Defendants' submitted evidence does not establish that Plaintiff is at fault beyond a triable fact issue. At best for Defendants, there appears to be a triable fact issue as to who is at fault for the fire. Under these circumstances, Plaintiff has a reasonable probability of prevailing on at least her constructive eviction claim. Thus, a preliminary injunction is warranted to preserve the status quo until trial.

As to the balance of harms during the interim if a preliminary injunction is or is not granted, the Court agrees with Plaintiff that the balance of harms weighs in favor of issuing an injunction, at least if Plaintiff is continuing to pay rent, and neither party has informed the Court otherwise.

If it is later determined at trial that Plaintiff is at fault for her own damages, Defendants are in a better position to pursue money damages against Plaintiff to recover their losses than will Plaintiff be able to pursue money damages against Defendants for damages to her and her minor child resulting from interim homelessness. While Plaintiff has renter's insurance, her policy only covers \$3,000.00 in benefits, which has already been exhausted. (See Suppl. Crowe decl., ¶¶ 37-41.) The balance of harms weighs in favor of Plaintiff.

The motion for preliminary injunction is granted in the form of an order continuing Judge Moskowitz's order that Defendants continue to provide Plaintiff and her minor child with emergency housing at the Residence Inn, Chatsworth, or similar emergency accommodations if the Residence Inn is not available. If Plaintiff has not already been allowed access to her unit to retrieve sensitive documents, Defendants are ordered to facilitate such access.

CONCLUSION

Plaintiff Nikole Crowe's application for a preliminary injunction is GRANTED. The Court hereby ORDERS that Defendants continue to provide Plaintiff and her minor child with emergency housing at the Residence Inn, Chatsworth, or similar emergency accommodations if the Residence Inn is not available. If Plaintiff has not already been allowed access to her unit to retrieve sensitive documents, Defendants are ORDERED to facilitate such access within 3 days of this order.

The Clerk is ORDERED to give notice.

DATED: July 28, 2026

Lee S. Arian, LASC Judge